

PERSONAL TRAINERS BUSINESS INCUBATOR STUDENT AGREEMENT

This Student Agreement (the “**Agreement**”), dated as of 2024-06-05 (“**Effective Date**”), is between Personal Trainers Business Incubator (the “**Company**”) and William Marceau (the “**Client**”) residing at 2776 Longboat Dr. Naples, FL, collectively, the “**Parties**”).

The Parties are entering into this Agreement for the purpose (the “**Purpose**”) of contracting for online education and mentorship provided by the Company, to the Client.

Therefore, the Parties agree as follows:

1. **Authorized Parties**. The Client acknowledges that they are contracting for the services of an online education and mentorship provided by the Company (the “**Services**”). Any Coach (the “**Coach**”) shall be entitled to provide the services described in this Agreement, on behalf of the Company.
2. **Services Provided**. The Company shall provide access to resources, including an online educational course available for a 12-month period, weekly coaching calls to answer questions for a 12-month period, text support line for any questions or concerns for a 12-month period, and one on one private coaching calls for a 12-month period.
3. **Method of Payment**.
 - 3.1 The Company shall bill the Client utilizing he Easy Pay Direct / Maverick Gateway, Paypal, or Square, on autopay. The Client shall be billed a total of \$7500, plus an online processing fee. Pricing for the services provided in this Agreement shall be as stated on the consultation call.
 - 3.2 The Client shall make all payments required under this Agreement through Square.
 - 3.3 If payment is not made or is not authorized by Easy Pay Direct, Paypal, or Square, all coaching services will be suspended until a new payment is made by Client.
 - 3.4 **Consequences of Late Payment or Default**. Service Provider shall be entitled to suspend the provision of any Services if Client fails to pay any undisputed fees when due hereunder and such failure continues for 7 days following written notice thereof (“**Late Payment**”).
4. **Refunds on Payment**. The Client understands and agrees that no refunds for any payments made to the Company will be provided for any reason, unless the Client receives the prior written consent of the Company.

- a. **Money Back Guarantee.** The Client shall be entitled to a money back guarantee IF the Client is not satisfied with their results after the 12-month period AND takes all of the following actions: Shows up to 1 group coaching call per week during the 12-month period, books weekly 1-1 coaching calls with their success coach during the 12-month period, utilizes the 1-1 support offered, timely replies to messages sent by the Company and its personnel, posts consistently on social media platforms at least 3 days per week during the 12-month period, send 30 DMs per day during the 12-month period, tracks this data with proof over the course of the 12-month period.
5. **Degree of Care.** The Company shall provide the Services in accordance with industry standards.
6. **No Representations or Warranties.** Neither the Company nor the Coaches authorized to work on the Company's behalf make any representation or warranty, expressed or implied.
7. **Confidentiality.**

7.1 You acknowledge that you will have access to information that is treated as confidential and proprietary by the Company including without limitation the existence and terms of this Agreement, trade secrets, technology, and information pertaining to business operations and strategies, customers, customer lists, pricing, marketing, finances, sourcing, personnel, operations of the Company, its affiliates, their suppliers or customers, workout protocols, nutritional guidelines, exercise explanations, e-books, and other confidential information, in each case whether spoken, written, printed, electronic, or in any other form or medium (collectively, the "Confidential Information"). You agree to treat all Confidential Information as strictly confidential, not to disclose Confidential Information or permit it to be disclosed, in whole or part, to any third party without the prior written consent of the Company in each instance, and not to use any Confidential Information for any purpose except as required under this Agreement. You shall notify the Company immediately in the event you become aware of any loss or disclosure of any Confidential Information.

7.2 You shall require each of your employees, independent contractors, and any other third parties utilized in connection with the Services or obligations under this Agreement (collectively, "**Representatives**"), to be bound by the terms of this Agreement to the same extent as if they were parties to this Agreement. You shall be responsible for any breach of this Agreement by any of your Representatives except for breaches committed by any such Representative that has executed its own confidentiality agreement with the Company with respect to the Services.

7.3 Confidential Information shall not include information that:

- a. is or becomes generally available to the public other than through your breach of this Agreement; or
- b. is communicated to you by a third party that had no confidentiality obligations with respect to such information.

7.4 Nothing in this Agreement shall be construed to prevent disclosure of Confidential Information as may be required by applicable law or regulation, or pursuant to the valid order of a court of competent jurisdiction or an authorized government agency, provided that the disclosure does not exceed the extent of disclosure required by such law, regulation, or order. You agree to provide written notice of any such order to an authorized officer of the Company within 1 business day of receiving such order, but in any event sufficiently in advance of making any disclosure to permit the Company to contest the order or seek confidentiality protections, as determined in the Company's sole discretion.

8. **Termination.**

8.1 The Parties shall have the right to terminate this Agreement upon written notice of termination to the other party. This writing must be via email or regular US mail. Text messaging shall not be considered written notice. Should the Client choose to cancel the contract prior to completing payments, the Client shall pay 50% of the outstanding balance under this Agreement (the "**Termination Fee**"). The Client shall not be entitled to a refund for cancellation. In the event of the Termination of this Agreement, The terms and conditions of this clause and section 4, Section 7, Section 9, Section 10, Section 11, Section 12, Section 13, Section 14, and Section 15 shall survive the expiration or termination of this Agreement.

8.2 On the expiration or termination of this Agreement, at the Company's written request, the Client shall promptly return, and shall require its Representatives to return to the Company all copies, whether in written, electronic, or other form or media, of the Company Confidential Information, or destroy all such copies and certify in writing to the Company that such Confidential Information has been destroyed. In addition to all other remedies available at law, the Company may seek equitable relief, including injunctive relief, against the Client and its Representatives to prevent the breach or threatened breach of this Section and Section 7, to secure its enforcement.

9. **Limited Warranty.** The Company warrants that it shall perform the Services (a) in a timely, workmanlike, and professional manner in accordance with generally recognized industry standards for similar services. THE COMPANY (a) MAKES NO WARRANTIES EXCEPT FOR THOSE SET OUT ABOVE; AND (b) DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

10. **Limitation of Liability.** In no event shall either party be liable to the other for any indirect, special, incidental, punitive, or consequential damages arising out of or relating to this Agreement or the provision of services hereunder.
11. **Indemnification.** The Client shall defend, indemnify, and hold harmless the Company, its affiliates, the Coach, and their officers, directors, employees, agents, successors, and assigns from and against all losses, damages, liabilities, deficiencies, actions, judgments, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees arising out of or resulting from: (a) bodily injury, sickness, death of any person, or damage to real or tangible property resulting from your acts or omissions; or (b) your breach of any representation, warranty, or obligation under this Agreement.
12. **Assignment.** A party's rights and obligations under this Agreement may not be assigned or otherwise transferred without the prior written consent of the other party. This Agreement shall be binding upon and inure to the benefit of each of the parties and their respective successors and permitted assigns. Any purported assignment by a party in violation of this Agreement shall be null and void from the initial date of purported assign.
13. **Remedies.** In the event you breach or threaten to breach Section 7 of this Agreement, you hereby acknowledge and agree that money damages would not afford an adequate remedy and that the Company shall be entitled to seek a temporary or permanent injunction or other equitable relief restraining such breach or threatened breach from any court of competent jurisdiction without the necessity of showing any actual damages. Any equitable relief shall be in addition to, not in lieu of, legal remedies, monetary damages, or other available forms of relief.
14. **Use of Photos and Personal Information.** The Client acknowledges that photos and or videos of the Client may be used across various social media platforms, and websites by Coach for marketing purposes. The Client gives permission and consent to allow the Coach to use client such photos and videos as necessary on platforms including but not limited to Instagram, Instagram Story, Facebook, and their own personal website. Client may request that all photos be kept private and not used in any manner. If at any time the Client is uncomfortable with a photo that has been shared, they may request the Coach to take down certain photos or information. Company shall own all right, title, and interest in and to all photos and videos of Client that are taken using the Company or Coach's photo or video equipment, or that are used on Coach or Company's website or social media platforms.

15. **Arbitration.**

15.1 Any dispute, controversy, or claim arising out of or related to this Agreement or any breach or termination of this Agreement, any alleged violation of any federal, state, or local statute, regulation, common law, or public policy, whether sounding in contract, tort, or statute, shall be submitted to and decided by binding arbitration. Arbitration shall be administered by the American Arbitration Association (“AAA”) and held in (Miami, Dade-County, Florida) before a single arbitrator, in accordance with the AAA’s rules, regulations, and requirements. Any arbitral award determination shall be final and binding upon the Parties. Judgment on the arbitrator’s award may be entered in any competent jurisdiction.

15.2 Arbitration shall proceed only on an individual basis. The Parties waive all rights to have their disputes heard or decided by a jury or in a court trial and the right to pursue any class or collective claims against each other in court, arbitration, or any other proceeding. Each party shall only submit their own individual claims against the other and will not seek to represent the interests of any other person. The arbitrator shall have no jurisdiction or authority to compel any class or collective claim, or to consolidate different arbitration proceedings with or join any other party to an arbitration between the Parties.

16. **Governing Law, Jurisdiction, and Venue.** This Agreement and all related documents including all schedules attached to this Agreement and all matters arising out of or relating to this Agreement and the Services provided, whether sounding in contract, tort, or statute, for all purposes shall be governed by and construed in accordance with the laws of the State of Florida (including its statutes of limitations), without giving effect to any conflict of laws principles that would cause the laws of any other jurisdiction to apply. An action seeking to enforce an injunctive relief in aid of arbitration or to enforce an arbitration award by either of the Parties under this Agreement, shall be brought only in any state or federal court located in the State of Florida, County of Dade. The Parties hereby irrevocably submit to the exclusive jurisdiction of these courts and waive the defense of inconvenient forum to the maintenance of the above specified actions and proceedings in such venue.

17. **Miscellaneous.**

17.1 **Severability.** Should any provision of this Agreement be held by a court of competent jurisdiction to be enforceable only if modified, or if any portion of this Agreement shall be held as unenforceable and thus stricken, that holding shall not affect the validity of the remainder of this Agreement, the balance of which shall continue to be binding on the parties with any modification to become a part of and treated as though originally set forth in this Agreement. The parties further agree that any such court is expressly authorized to modify any unenforceable provision of this Agreement instead of severing the unenforceable provision from this Agreement in its entirety, whether by rewriting the offending provision, deleting any or all of the offending provision, adding additional language to this Agreement, or by making any other modifications it

deems warranted to carry out the intent and agreement of the parties as embodied in this Agreement to the maximum permitted by law.

17.2 **Notice.** All notices must be in writing and addressed to the Disclosing Party at its address set out in the preamble (or to such other address such party specifies in accordance with this Section). All notice must be personally delivered or sent prepaid by nationally recognized courier or certified or registered mail, return receipt requested, and are effective on actual receipt

17.3 **Counterparts.** This Agreement may be executed by facsimile and in counterparts, all of which shall be considered one and the same agreement and shall become effective when one or more counterparts have been signed by each of the parties and delivered to all parties in this Agreement.

17.4 **Entire Agreement.** This Agreement terminates and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, regarding such subject matter. This Agreement may only be amended, modified, waived, or supplemented by an agreement in writing signed by both parties.

[Signatures Page Follows]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed as of the Effective Date by their respective officers thereunto duly authorized.

Personal Trainers Business Incubator:

By: Zakk Colburn

Signature: *Zakk Colburn*

Title: CEO

Client:

By: William Marceau

Signature: *wmarceau@marceausolutions.com*

Phone Number: 2393985676

Email: wmarceau@marceausolutions.com

Signature Certificate

Reference number: 3GVSF-M5JSM-AUFKM-TEQMG

Signer

Email: wmarceau@marceausolutions.com

Sent:

Viewed:

Signed:

Timestamp

05 Jun 2024 22:38:24 UTC

05 Jun 2024 22:38:39 UTC

05 Jun 2024 22:40:09 UTC

Signature

wmarceau@marceausolutions.com

Recipient Verification:

✓ Email verified

05 Jun 2024 22:38:39 UTC

IP address: 98.242.161.195

Location: Jacksonville, United States

Document completed by all parties on:

05 Jun 2024 22:40:09 UTC

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